

VCL331702 Grant & Weber, Inc. vs. Stewart, Vanessa Lopez

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-07-28

Motion: (1) Defendant Mark Stewart's Motion for Summary Judgment; (2) Defendant Vanessa Stewart's Motion to Dismiss

Source URL: <https://www.tulare.courts.ca.gov/general-information/tentative-rulings>

Source SHA-256: cf6bf932e23ace8295d03c2678ae0798e358a3f38325faaee39d79839e95a604

Re: Grant & Weber, Inc. vs. Stewart, Vanessa Lopez

Case No.: VCL331702

Date: July 28, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: (1) Defendant Mark Stewart's Motion for Summary Judgment; (2) Defendant Vanessa Stewart's Motion to Dismiss

Tentative Ruling: (1) To deny the motion; (2) To deny the motion

(1) Defendant Mark Stewart's Motion for Summary Judgment

Facts and Analysis

Defendant Mark Stewart moves for summary judgment under Code of Civil Procedure section 473c. However, this motion was filed June 26, 2026 and set for hearing July 28, 2026.

Under Code of Civil Procedure section 473c(a)(2), notice of the motion and supporting papers must be filed and served on all other parties to the action at least 81 days before the time appointed for hearing. Here, while there is no proof of service, the motion is set well less than 81 days from the filing date. "The subdivision does not contain any language authorizing courts to shorten the [81]-day notice period. (McMahon v. Superior Court (2003) 106 Cal.App.4th 112, 115.) (emphasis added.)

As such, the Court denies the motion.

(2) Defendant Vanessa Stewart's Motion to Dismiss

Facts and Analysis

Defendant Vanessa Stewart has filed a nearly identical motion to the motion for summary judgment adjudicated above, with the term "summary judgment" struck and the term "motion to dismiss" inserted in its place but that still cites to Code of Civil Procedure section 473c.

The California Supreme Court has held that the strong policy favoring resolution of disputes on their merits requires "flexibility rather than mechanical adherence to motion and pleading labels." (*Laguna Village, Inc. v. Laborers International Union of North America* (1983) 35 Cal. 3d 174, 182.) "[A] trial court is 'free to consider the motion regardless of its label.' [Citations.] ... The proposition that a trial court may construe a motion bearing one label as a different type of motion is one that has existed for many decades. 'The nature of a motion is determined by the nature of the relief sought, not by the label attached to it. The law is not a mere game of words.' [Citations.] Neither the Legislature, nor the California Supreme Court, nor any Court of Appeal has ever challenged that notion. To the contrary, several courts have tacitly approved the treatment of a motion for reconsideration as a motion for a new trial, and vice versa. [Citations.] The principle that a trial court may consider a motion regardless of the label placed on it by a party is consistent with the court's inherent authority to manage and control its docket. [Citation.]" (*Sole Energy Co. v. Petrominerals Corp.* (2005) 128 Cal. App. 4th 187, 193.)

As such, the Court treats this motion as a motion for summary judgment, noting there is no other statutory basis as to a motion to dismiss.

This motion was filed June 26, 2026 and set for hearing July 28, 2026.

Under Code of Civil Procedure section 473c(a)(2), notice of the motion and supporting papers must be filed and served on all other parties to the action at least 81 days before the time appointed for hearing. Here, while there is no proof of service, the motion is set well less than 81 days from the filing date. "The subdivision does not contain any language authorizing courts to shorten the [81]-day notice period. (*McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 115.) (emphasis added.)

As such, the Court denies the motion.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.